

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH**

IN RE:)

LAURA MALONE-MCENERNEY)

License No. 097.0064025

Docket No.: 2011-823

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through State Prosecuting Attorney S. Lauren Hibbert, and the Respondent, Laura Malone-McEnerney, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health has jurisdiction to hear the charges in this case, adjudicate cases of unlicensed practice, and/or impose an administrative penalty pursuant to 3 V.S.A. §§127, 129, 129a; 26 V.S.A. § 4083; the Rules of the Board of Allied Mental Health Practitioners and the Rules of the Office of Professional Regulation.

Statement of Facts

2. Laura Malone-McEnerney ("Respondent") is registered in the State of Vermont as a non-licensed and non-certified psychotherapist under license number 097.0064025. This license was originally issued on February 19, 2010 and is currently set to expire on November 30, 2012.

3. On or about November 30, 2010, Respondent's registration expired. While her registration was expired the Respondent provided counseling services. On or about January 19, 2012 Respondent renewed her license. The time period the Respondent worked while her license was lapsed was approximately 13 (thirteen) months.

Noncompliance with Administrative Duties

4. By committing the act(s) and/or omission(s) described above, the Respondent has violated 26 V.S.A. § 4084(a) (No person shall practice psychotherapy unless the person is entered on the roster of psychotherapists who are nonlicensed and noncertified).

Understandings

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
National Life Building
Second Floor North
Montpelier, VT
05620-3602

5. Respondent understands that the Board of Allied Mental Health must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
6. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
7. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
8. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
9. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
10. Respondent voluntarily waives her right to a contested hearing before the Board of Allied Mental Health and waives any right to appeal from this Stipulation and Consent Order.
11. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. Since this violation occurred only in respect to the Respondent's noncompliance with administrative duties, the Board of Allied Mental Health does NOT make a finding of unprofessional conduct, but rather imposes a **MONETARY CIVIL PENALTY IN THE AMOUNT OF THREE HUNDRED DOLLARS (\$300)** on the Respondent. This penalty is to be paid within ninety (90) days of the date of entry of this Order.
- B. Notwithstanding any provision above, the Respondent must continue to meet all Board of Allied Mental Health requirements for maintaining a license, license renewal and license reinstatement.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. § 129(a).
- D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT

STATE OF VERMONT



Prosecuting Attorney
Office of
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National Life Building
Second Floor North
Montpelier, VT
05620-3602

SECRETARY OF STATE

Dated: 7/16/12

By: S. Lauren Hibbert
S. Lauren Hibbert
State Prosecuting Attorney

LAURA MALONE-MCENERNEY
RESPONDENT

Dated: July 17, 2012

By: Laura Malone-McEnerney
Laura Malone-McEnerney

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH

Dated: July 19, 2012

By: Marilyn Turner
Chairperson

Date of Entry: 7/19/12

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